

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Tuesday, August 04, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, August 04, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-04082	DS Orchards, LLC, et al. vs Cardella Merced, LLC, et al.
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Motions in Limine

Plaintiff/Cross-Defendant's motion in limine 1 is DENIED. Certainly, any information that was not previously disclosed in discovery pursuant to a valid request for production is not admissible at trial, however absent the specific identification of an item of evidence that was not produced but that Defendant/Cross-Complainant seeks to introduce, this motion seeks nothing more than an advisory opinion. Motions in limine must seek to exclude or admit specific, identifiable evidence. In the event Defendant/Cross-Complainant seeks to introduce at trial evidence not produced during discovery, the Court will entertain and rule upon objections as they arise.

No other motions in limine were filed. Court trial on August 11, 2026, at 9:00 a.m. in Courtroom 8 is CONFIRMED. In-person appearances are required at trial.

Motion to Deem Requests for Admission Propounded on Relator Justin Kendall Admitted for Failure to Timely Serve Responses

Defendant's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Relator Kendall failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Defendant's Requests for Admission, Set One, are deemed admitted, unless Relator Kendall serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Kendall to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as the due date.

Motion to Deem Requests for Admission Propounded on Relator Haylee Davis Admitted for Failure to Timely Serve Responses

Defendant's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Relator Davis failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Defendant's Requests for Admission, Set One, are deemed admitted, unless Relator Davis serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Davis to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as the due date.

Motion and Motion to Compel Relator Justin Kendall's Responses to Requests for Production

Defendant's motion to compel responses to Request for Production of Documents, Set One, is GRANTED.

Relator Kendall has failed to provide timely responses to Request for Production of Documents, Set One. Objections are waived.

Relator Kendall shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Kendall to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Motion and Motion to Compel Relator Haylee Davis's Responses to Requests for Production

Defendant's motion to compel responses to Request for Production of Documents, Set One, is GRANTED.

Relator Davis has failed to provide timely responses to Request for Production of Documents, Set One. Objections are waived.

Relator Davis shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Davis to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Motion to Compel Relator Justin Kendall's Responses to Special Interrogatories, Set One, And Request for Sanctions

Defendant's motion to compel responses to Special Interrogatories, Set One, is GRANTED.

Relator Kendall has failed to provide timely responses to Special Interrogatories, Set One. Objections are waived.

Relator Kendall shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Kendall to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Motion to Compel Relator Haylee Davis's Responses to Special Interrogatories, Set One, And Request for Sanctions

Defendant's motion to compel responses to Special Interrogatories, Set One, is GRANTED.

Relator Davis has failed to provide timely responses to Special Interrogatories, Set One. Objections are waived.

Relator Davis shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Relator Davis to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on July 2, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500, as well as modifying the respective due dates.

Status Conference

Appearance required.

22CV-03951 Ramon Rosas, et al. vs General Motors, LLC.

Motions in limine

Appearance required.

23CV-04368 Tony Borba, et al. vs County of Merced, et al.

Motion to Bifurcate into A Bench Trial on Liability for Inverse Condemnation and the Application of Statutory Immunity

The Court notes that although the instant motion was filed by Defendant California Department of Fish and Wildlife (CDFW), it was joined in part (inverse condemnation) and opposed in part (immunities) by Defendants County of Merced and Merced Irrigation District.

Defendant California Department of Fish and Wildlife's (CDFW) motion to bifurcate the bench trial for the liability phase of the inverse condemnation cause of action is GRANTED. The damages portion will be separately heard before a jury.

The motion to bifurcate the threshold issues on the applicability of and immunity under Government Code sections 818.4 and 821.2 is GRANTED, to be heard concurrently with the liability phase as to inverse condemnation. These issues must be decided by the court in advance of any trial on the underlying tort actions. These issues are potentially dispositive as to CDFW and common to all plaintiffs. It serves judicial economy as well as efficiency for the parties to have these issues decided sooner than later, and there is no prejudice hearing these questions of law concurrently with the required bench trial on inverse condemnation liability.

Plaintiffs, in opposition, propose that any bifurcation be limited to bifurcating all liability and damages with representative plaintiff groups. The Court declines to adopt this request as it is outside the scope of Defendant's motion. Plaintiffs are free to bring their own motion to bifurcate.

At the conclusion of the court trial, a jury trial will be scheduled on the remaining issues. No other orders are made at this time with regard to trial structure or management, including CDFW's specific proposal of three phases.

The Court will sign the order lodged along with the motion on July 10, 2026.

26CV-02396 Petition of: Ramona Rivero

Order to Show Cause Re: Name Change

Appearance required. Proof of publication was filed July 22, 2026. Absent objection at the time of the hearing, or legal cause why Petitioner should not be permitted to change her name, the petition will be GRANTED.

26CV-02453 Emily McCarthy vs Mercy Medical Center Merced, et al.

Demurrer to Complaint

Defendant generally and specially demurs to Plaintiff's fourth cause of action. Defendant's request for judicial notice is GRANTED. Defendant Dignity Health dba Mercy Medical Center Merced's demurrer to Plaintiff's complaint is OVERRULED.

At the demurrer stage, Plaintiff sufficiently alleges facts to constitute a cause of action pursuant to Civil Code section 51.9. The facts as alleged in the complaint regarding the unwelcome comments and touching are sufficient to support an allegation of severe conduct under Civil Code section 51.9.

In addition, the cause of action is not uncertain. There are no ambiguous or unintelligible allegations.

The remaining issue is the naming of Defendant in the complaint. Here, the court grants leave to make a non-substantive amendment to the complaint, specifically to correct Defendant's name.

Plaintiff is order to file the amended complaint correcting Defendant's name within ten (10) days of this court's order.

Motion to Strike Portions of Plaintiff's Complaint

Defendant Dignity Health dba Mercy Medical Center Merced's motion to strike is DENIED.

As a preliminary note, the court finds the typographical error regarding the incorrectly named defendant to be harmless and this was not considered in the below ruling.

As to attorney's fees, Plaintiff's fourth cause of action has alleged a cause of action against Defendant pursuant to Civil Code section 51.9. Although section 51.9 does not contain an express attorney's fees provision within its own text, it expressly incorporates the remedies set forth in Civil Code Section 52, subdivision (b), which explicitly provides for attorney's fees, as determined by the court. (Civ. Code § 52, subd. (b)(3).)

Regarding the prayer for punitive damages, the prayer is for "For exemplary damages only on claims and against defendants for which such damages may be pleaded and recovered without prior leave of Court; and, as to any claim governed by Code of Civil Procedure section 425.13, for leave to amend to seek punitive or exemplary damages if and when authorized by law." (Complaint, Prayer ¶ (d), 19:1-4.)

Although the phrasing is perhaps inartful, the prayer is limited to those claims and defendants for which punitive damages may be pleaded without leave of court. As to Code of Civil Procedure section 425.13, the prayer provides that Plaintiff will seek leave to amend to plead punitive damages if and when authorized by law. Absent court approval pursuant to Code of Civil Procedure section 425.13, the prayer for punitive damages is not applicable to Defendant Dignity Health dba Mercy Medical Center Merced.

26CV-03390

Petition of: Rafael Daniel Ponce Sanchez

Order to Show Cause Re: Name Change

Appearance required. Upon presentation of proof of publication of the petition, and absent objection at the time of the hearing, the petition for name change will be GRANTED.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion / Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, August 04, 2026
1:30 p.m.

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Case No.	Title / Description
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24CV-05742	Crown Asset Management, LLC vs Rosemary Musquez
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Claim of Exemption

The Judgment Debtor's claim of exemption is GRANTED IN PART.

The Judgment Debtor's wage garnishment is modified to be \$100 per paycheck.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Unlawful Detainer
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, August 04, 2026
2:00 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-02085	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Review Hearing Uncontested

Appearance required.

26CV-03305	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Court Trial: Unlawful Detainer

Appearance required.
